

over be "on dying under 21 without issue," then, if the son die leaving issue, the grandchild may die under age and unmarried, when the personalty will go to the son's personal representative, while the freeholds will devolve on the second son (*a*).

11. Joint tenancy in articles construed tenancy in common.

— Again, in *marriage articles*, as *joint tenancy* is an inconvenient mode of settlement on the children of the marriage (for, during their minorities no use can be made of their portions, as the joint tenancy cannot be severed) (*b*), the Court will rectify the articles by the presumed intent of the contract, and will permit words that would be construed a joint tenancy at law to create in equity a tenancy in common (*c*).

12. Words supplied in articles.— In other cases the Court has varied the literal construction by supplying words, as where the agreement was to lay out 200*l.* in the purchase of 30*l.* a year, to be settled on the husband and wife for their lives, remainder to the heirs of their bodies, remainder to the husband in fee, and, until the settlement should be made, the 200*l.* was to be applied to the separate use of the wife; and, if no settlement were executed during their joint lives, the 200*l.* was to go to the wife, if living, but, if she died before her husband, then to her brother and sister; and the wife died before her husband, but left issue; it was held the brother and sister had no claim to the fund, the words "if she died before her husband" intending plainly if she so died "without leaving issue" (*d*). [The Court has also in a modern settlement supplied a hotchpot clause (*e*).]

(*a*) *Countess of Lincoln v. Duke of Newcastle*, 12 Ves. 228, 229.

(*b*) *Taggart v. Taggart*, 1 Sch. & Lef. 88, *per Lord Redesdale*; and see *Rigden v. Vallier*, 3 Atk. 734, and *Marryat v. Townley*, 1 Ves. 103. But it would seem that an instrument executed by an infant, though voidable, severs the joint tenancy until it is avoided; but that if the infant when of age avoids the instrument the joint tenancy will arise again. *Burnaby v. Equitable Reversionary Interest Society*, 28 Ch. D.

416; *Whittingham's case*, 8 Rep. 42 b; *Coke on Litt.* 337 a, 337 b; but see *May v. Hook*, *Coke on Litt.* 246 a, note (1).

(*c*) *Taggart v. Taggart*, 1 Sch. & Lef. 84; *Mayn v. Mayn*, 5 L. R. Eq. 150.

(*d*) *Kentish v. Newman*, 1 P. W. 234; and see *Targus v. Puget*, 2 Ves. 194; *Master v. De Croismar*, 11 Beav. 184; *Martin v. Martin*, 2 R. & M. 507.

[(*e*) *Miller v. Gulson*, 13 L. R. Ir. 408.]